CENTRAL ELECTRICITY REGULATORY COMMISSION
NEW DELHI

Petition No. 886/TL/2025

Coram:
Shri Jishnu Barua, Chairperson
Shri Ramesh Babu V., Member
Shri Harish Dudani, Member
Shri Ravinder Singh Dhillon, Member

Date of Order: 31st January, 2026

In the matter of

Application under Sections 14 & 15 of the Electricity Act, 2003 read with the Central Electricity Regulatory Commission (Procedure, Terms and Conditions for Grant of Transmission Licence and other related matters) Regulations, 2024 with respect to Transmission Licence to Vindhyachal Varanasi Transmission Limited.

And
In the matter of

Vindhyachal Varanasi Transmission Limited,
(A 100% wholly owned subsidiary of Power Grid Corporation of India Limited)

Registered office:
B-9, Qutab Institutional Area,
Katwaria Sarai, New Delhi – 110016.

Address for correspondence:
C/o ED (TBCB), Power Grid Corporation of India Limited,
Saudamini, Plot no.2, Sector -29, Gurgaon – 122001. **…Petitioner**

Vs

1. Central Transmission Utility of India Limited,
Saudamini, Plot No.2, Sector-29,
Gurgaon – 122001, Haryana.

2. PFC Consulting Limited,
9th Floor, A-Wing, Statesman House,
Connaught Place, New Delhi - 110001.

3. Chandigarh Electricity Department,
UT-Chandigarh, Div-11, Opposite Transport Nagar,
Industrial Area Phase - I, Chandigarh.

4. BSES Rajdhani Power Limited,

AVP (PMG), PMG Office, 2nd Floor B-Block,
Nehru Place, New Delhi – 110019.

5. BSES Yamuna Power Limited,
Asstt. Vice President (PMG), Shakti Kiran Bldg,
Second Floor, Karkardooma, New Delhi - 110032.

6. New Delhi Municipal Council,
AAO (Commercial), 19th Floor, NDMC, Palika Kendra,
Sansad Marg, New Delhi – 110001.

7. Tata Power Delhi Distribution Limited,
Power Management Group, Technology Centre,
Near PP-3 Grid Sub Station, Opp. PP Jewellers,
Netaji Shubhash Place, Pitampura, New Delhi – 110034.

8. Himachal Pradesh State Electricity Board,
PR&ALDC, HPSEB Ltd, 132 KV S/S Tutu,
Shimla – 171011, Himachal Pradesh.

9. Haryana Power Purchase Centre,
Shakti Bhawan, Energy Exchange,
Panchkula.

10. Power Development Department,
Jammu SLDC Building, Ist Floor, Gladni,
Power House Narwal, Jammu, J&K.

11. Punjab State Power Corporation Limited,
Shed No. T-1A, Thermal Designs,
Patiala – 147001, Punjab.

12. HVDC Dadri, POWERGRID,
B-9, Qutub Institutional Area,
Katwaria Sarai, New Delhi - 110016.

13. HVDC Rihand, POWERGRID,
B-9, Qutub Institutional Area,
Katwaria Sarai, New Delhi - 110016.

14. Ajmer Vidyut Vitran Nigam Limited,
The Superintending Engineer (Billing),
Rajasthan Urja Vikas Nigam Limited,
132 KV, Sub- Station Building, Calgiri Road,
Malviya Nagar, Jaipur-302017, Rajasthan.

15. Jodhpur Vidyut Vitran Nigam Limited,
The Superintending Engineer (Billing),
Rajasthan Urja Vikas Nigam Limited,
132 KV, Sub- Station Building, Calgiri Road,

Malviya Nagar, Jaipur-302017, Rajasthan.

16. **Jaipur Vidyut Vitran Nigam Limited,**
The Superintending Engineer (Billing),
Rajasthan Urja Vikas Nigam Limited,
132 KV, Sub- Station Building, Calgiri Road
Malviya Nagar, Jaipur-302017, Rajasthan.

17. **North Central Railway,**
DRM Office Nawab Yusuf Road – 211011.

18. **Uttarakhand Power Corporation Limited,**
Urja Bhjawan, Kanwali Road, Dehradun - 248001.

19. **Uttar Pradesh Power Corporation Limited,**
Fund Management, Shakti Bhawan,
14 Ashok Marg, Lucknow, UP.

20. **AD Hydro,**
AD Hydro Power Limited,
Bhilwara Towers, A-12, Sector-1,
Noida - 201301.

21. **GMR Kamalanga Energy Limited,**
25/1 SKIP HOUSE, 25/1 Skip House,
Museum Road, Museum Road,
Bangalore - 560025, Karnataka.

22. **MB Power (Madhya Pradesh) Limited,**
239, Okhla Industrial Estate, Phase –III,
New Delhi - 110020.

23. **HVDC Agra, POWERGRID,**
B-9, Qutub Institutional Area, New Delhi.

24. **HVDC Balia, POWERGRID,**
POWERGRID B-9, Qutub Institutional Area,
Katwaria Sarai, New Delhi – 110016.

25. **HVDC Bhiwadi, POWERGRID,**
POWERGRID B-9, Qutub Institutional Area,
Katwaria Sarai, New Delhi – 110016.

26. **HVDC Kurukshetra, POWERGRID,**
POWERGRID B-9, Qutub Institutional Area,
Katwaria Sarai, New Delhi – 110016.

27. **Northern Indian Railway,**
Sr. DEE, TRD, Delhi Division Central Delhi.

28. Noida Power Company Limited,
Electric Sub Station Knowledge Park IV,
Greater Noida – 201310.

29. Northern Railways,
Sr. DEE/ TRD, DRM Office, Hazratgan,
Lucknow – 226001.

30. Chhattisgarh State Power Distribution Co. Limited,
CSPDCL, Post: Sundernagar, Dangania,
Raipur – 492013.

31. Goa Electricity Department-WR,
Goa Electricity DeptCurti, Ponda403401

32. Gujarat Urja Vikas Nigam Limited,
Sardar Patel Vidyut Bhavan, Racecourse,
Vadodara – 390007.

33. Heavy Water Board,
O Floor, Vikram Sarabhai Bhavan,
Trombay, Anushaktinagar,
Mumbai - 400094, Maharashtra.

34. HVDC Bhadrawati, PGCIL,
PGCIL RHQ, WR-I, Sampriti Nagar,
Off National Highway No. 8,
Taluka: Kamrej, PO: Uppalwadi,
Nagpur – 440026, Maharashtra.

35. HVDC Vindhyachal, PGCIL,
PGCIL RHQ, WR-I, Sampriti Nagar,
Off National Highway No. 8,
Taluka: Kamrej, PO: Uppalwadi,
Nagpur – 440026, Maharashtra.

36. M.P. Power Management Company Limited,
14, Shakti Bhawan, Rampur,
Jabalpur – 482008.

37. MSEDCL,
Plot No. 9, "Prakashgad", A K Marg,
Bandra East, Mumbai – 400051.

38. ACB India Limited,
7th Floor, Corporate Tower, Ambience Mall, NH-8,
Gurgaon-122001, Haryana.

39. Torrent Power Limited,
Torrent Power Ltd. Naranpura Zonal Office,

Sola Road, Ahmedabad – 380013.

40. Thermal Powertech Corporation India,
6-3-1090, Clock C, Level 2, TSR, Towers,
Rajbhavan Road, Somajiguda,
Hyderabad - 500082, Telangana.

41. Bhabha Atomic Research Centre, BARC,
Anushakti Nagar, Mumbai – 400085, Maharashtra.

42. GMR Warora Energy Limited,
Plot B-1, GMR Warora Energy Ltd,
Mohabala MIDC Growth Centre, Post – Warora,
Dist – Chandrapur – 442907, Maharashtra.

43. HVDC Champa,
PGCIL RHQ, WR-I, Sampriti Nagar,
Off National Highway No. 8, Taluka: Kamrej,
PO: Uppalwadi, Nagpur – 440026, Maharashtra.

44. West Central Railway Head Office,
General Manager's Office, Electrical Branch,
Jabalpur– 482001.

45. Western Railway,
Office of Chief Electrical Engineer, Mumbai.

46. DB Power Limited- Untied,
Opp. Dena Bank, C-31, G- Block, Mumbai.

47. Chhattisgarh State Power Trading Co. Limited,
2nd floor Vidyut Sewa Bhawan, Raipur.

48. TRN Energy Private Ltd.-Untied,
7th Floor, Ambience Office Block, Gurugram.

49. Adani Power (Mundra) Limited,
Adani Corporate House, Shantigram,
Near Vaishnavdevi Circle,
S G Road Ahmedabad – 382421.

50. Raigarh HVDC Station,
RPT HVDC Office, Hebbal,
Bangalore – 560094.

51. Arcelor Mittal Nippon Steel India Limited,
27, AMNS House, 2TH KM Surat Hazira road,
Hazira - 394270, Gujarat.

52. Central Railway,

Pcee's Office 2nd Floor Parcle Building,
Csmt Mumbai - 400001.

53. Dadra & Nagar Haveli & Daman & Power Distribution Corporation Limited,
1st & 2nd Floor, Vidyut Bhavan,
Nex Silvassa & Daman.

54. MPSEZ Utilities Limited,
3rd Floor, Adani Corporate House,
Ahmedabad. **….Respondents**

Parties present:
Shri Rohit Jain, VVTL
Shri Sachin Yadav, VVTL
Shri Akshayvat Kislay, CTUIL
Shri Aniruddha Khopde, CTUIL

ORDER

The Petitioner, Vindhyachal Varanasi Transmission Limited (hereinafter referred to as "VVTL"), has filed the present Petition for the grant of a transmission licence under Sections 14 and 15 of the Electricity Act, 2003 (hereinafter referred to as "the Act") read with the Central Electricity Regulatory Commission (Procedure, Terms, and Conditions for grant of Transmission Licence and other related matters) Regulations, 2024 (hereinafter referred to as "the Transmission Licence Regulations") to establish the Inter-State transmission system for "Inter-regional (NR-WR) Transmission System strengthening to relieve the loading of 765 kV Vindhyachal - Varanasi D/c line" on a Build, Own, Operate and Transfer Basis (hereinafter referred to as "the Project") consisting of the following elements:

Sl. No	Name of the Transmission Element	Scheduled COD	Element(s) which are pre-required for declaring the Commercial Operation Date (COD) of the respective Element

1.	Establishment of 765 kV Prayagraj S/s near Prayagraj (Uttar Pradesh) along with 2x330 MVAr 765 kV Bus reactors. • 765 kV, 330 MVAr Bus Reactor: 2 Nos. (7x110 MVAr, including one spare unit) • 765 kV Bus Reactor bays: 2 Nos. • 765 kV Line bays: 6 Nos. (for LILO of 765 kV Fatehpur-Sasaram S/C line, LILO of 765 kV Fatehpur – Varanasi S/C line and Vindhaychal Pool-Prayagraj 765 kV D/C line) **<u>Future provisions:</u>** **Space for** • 765/400 kV ICTs along with bays- 4 Nos. • 765 kV line bays along with switchable line reactors – 8 Nos. • 765 kV Bus Reactor along with bay: 1 No. • 400 kV line bays along with switchable line reactor: 4 Nos. • 400 kV line bays: 2 Nos. • 400 kV Bus Reactor along with bays: 2 Nos. • 400 kV Sectionalization bay: 1 set	24 months (16.10.2027)	All elements of the scheme are required to be commissioned simultaneously as their utilisation is dependent on each other.
2.	LILO of 765 kV Fatehpur – Varanasi S/C line at Prayagraj.		
3.	LILO of 765 kV Fatehpur – Sasaram S/C line at Prayagraj.		
4.	765 kV Vindhyachal Pool – Prayagraj D/C line, along with 330 MVAr line reactor (switchable) at Prayagraj end on each circuit of 765 kV Vindhyachal Pool - Prayagraj D/C line • 765 kV, 330 MVAr switchable line reactors at Prayagraj end: 2 Nos. • Switching equipment for 765 kV 330 MVAr switchable line reactors at Prayagraj S/s: 2 Nos		
5.	Bypassing both circuits of 765 kV Sasan – Vindhyachal Pool 2xS/C line at Vindhyachal Pool and connecting it with 765 kV Vindhyachal Pool - Prayagraj D/C line, thus forming 765 kV Sasan - Prayagraj D/C line		

2. The Petitioner has made the following prayers:

> *"(a) Grant Transmission Licence to the Petitioner; and*
>
> *(b) Allow the sharing and recovery of Transmission Charges for Inter-State Transmission System for "Inter-regional (NR-WR) Transmission System strengthening to relieve the loading of 765 kV Vindhyachal - Varanasi D/c line" as per Sharing of Inter-state Transmission Charges and Losses CERC Regulations 2020 and any other amendment thereon issued from time to time by CERC; and*
>
> *(c) Pass such other order(s) as this Commission may deem fit and proper in the facts and circumstances of this case."*

Hearing dated 23.12.2025

3. Notice was issued to the parties to file their replies and rejoinders. During the course of the hearing, the representative of the Petitioner submitted that the Petitioner has complied with the requirements, including publication of notice(s) under the provisions of the Transmission Licence Regulations, and that CTUIL has also issued its recommendations for the grant of a transmission licence to the Petitioner Company.

4. Vide Record of Proceedings for the hearing (hereinafter referred to as "RoP") dated 23.12.2025, the PFCCL was directed to file the following information on an affidavit:

(a) The complete bid evaluation report, including the number of bidders at the RFQ and RFP stages with their respective quotes, the evaluation of bids by the BEC on both technical and financial parameters, and the minutes of the relevant meetings;

(b) Comparison of the levelised tariff quoted by the bidder vis-à-vis the levelised tariff worked out in accordance with the CERC Tariff Regulations, based on the capital cost as assessed by CEA/ CTUIL as the benchmarking capital cost under CERC norms, along with a detailed calculation of the levelised tariff as per the CERC norms;

(c) Recommendations of the Cost Committee, along with the cost estimates.

5. In compliance with the directions issued vide the RoP dated 23.12.2025, the Petitioner submitted the requisite information, vide affidavit dated 19.1.2026.

Hearing dated 21.1.2026

6. During the course of the hearing, the representative of the Petitioner submitted that no reply has been filed by the Respondents till date. After hearing the Petitioner's representative, the matter was reserved for order.

7. The Petitioner has submitted that in accordance with the "Guidelines for Encouraging Competition in Development of Transmission Projects" and "Tariff Based Competitive Bidding Guidelines for Transmission Service" (hereinafter referred to as "the Guidelines") issued by the Ministry of Power, Government of India, under Section 63 of the Act, PFC Consulting Limited (hereinafter referred to as "PFCCL") was notified by the Ministry of Power, Government of India, vide Gazette Notification. No. CG-DL-E-21032025-261808 dated 19.3.2025 as the Bid Process Coordinator (hereinafter referred to as "BPC") for the purpose of selection of bidder as the Transmission Service Provider (hereinafter referred to as "TSP") to establish the Inter-State Transmission system for the "Inter-regional (NR-WR) Transmission System strengthening to relieve the loading of 765 kV Vindhyachal - Varanasi D/c line" on a Build, Own, Operate and Transfer basis.

8. PFCCL, in its capacity as the BPC, initiated the bid process on 4.4.2025 and completed the same on 16.10.2025 in accordance with the Guidelines. Power Grid Corporation of India Limited was selected as the successful bidder, having quoted

the lowest transmission charges of Rs. 3,231.30 million per annum to provide transmission services to the beneficiaries of the transmission system.

9. The RfP was issued on 4.4.2025. At the RfP (Technical and Financial) stage, seven bidders, namely, (i) Power Grid Corporation of India Limited; (ii) Enerica Infra 1 Private Ltd.; (iii) Adani Energy Solutions Limited; (iv) Resonia Limited (Formerly known as Sterlite Grid 32 Limited); (v) KCC Buildcon Private Limited; (vi) H.G. Infra Engineering Limited, and (vii) Dineshchandra R Agrawal Infracon Private Limited, submitted their offers. The RfP (Technical) bids of the above bidders were opened by the Bid Opening Committee in the Central Electricity Authority on 20.8.2025 in the presence of a representative of each bidder. Based on the recommendation of the Bid Evaluation Committee ("BEC"), the RfP (Financial) Bids-Initial Price Offer of the bidders were opened on 3.9.2025. The Lowest Initial Price Offer discovered (Best Deal) on the MSTC portal was Rs. 3690 million per annum. The details of the quoted transmission charges by the bidders are as under:

S. No.	Name of the Bidder	Quoted Transmission Charges (Rs. in million per annum)	Rank
1.	Dineshchandra R Agrawal Infracon Private Limited	3690.00	L1
2.	Enerica Infra 1 Private Limited	4055.00	L2
3.	Resonia Limited	4092.70	L3
4.	Power Grid Corporation of India Limited	4100.00	L4
5.	KCC Buildcon Private Limited	5334.00	L5
6.	Adani Energy Solutions Limited	6505.40	L6
7.	H.G. Infra Engineering Limited	7011.00	L7

10. As per Clause 3.5.1 of the RfP document, initial offers shall be ranked on the basis of ascending order for the determination of the qualified bidders. The bidders holding the first fifty per cent of the ranks (with any fraction rounded off to a higher

integer) or four Bidders, whichever is higher, shall be considered to be qualified for participating in the electronic reverse auction stage and submitting their final offer.

11. The e-reverse was conducted on the MSTC portal on 4.9.2025 and concluded on the next day, i.e., 5.9.2025. The following four bidders were qualified to participate in the e-reverse auction. The Final Offer (Quoted Transmission Charges) of the bidders as quoted at the time of closing of the e-reverse auction is as under:

S. No.	Name of the Bidder	Quoted Transmission Charges (in INR million per annum)	Rank
1.	Power Grid Corporation of India Limited	3,231.30	L1
2.	Enerica Infra 1 Private Limited	3239.40	L2
3.	Dineshchandra R Agrawal Infracon Private Limited	3653.22	L3
4.	Resonia Limited	3671.56	L4

12. As per the Bid Evaluation Report dated 9.9.2025, Power Grid Corporation of India Limited emerged as the successful bidder with the lowest quoted transmission charges of Rs. 3,231.30 million per annum. BEC, vide its certificate dated 9.9.2025, has certified that the entire bid process has been carried out in accordance with the Guidelines issued by the Ministry of Power under Section 63 of the Act. BEC has further certified that the transmission charges discovered through the e-reverse auction are acceptable.

13. Consequent to its selection as the lowest bidder, a Letter of Intent (hereinafter referred to as “LoI”) was issued to Power Grid Corporation of India Limited on 16.9.2025, which was accepted by Power Grid Corporation of India Limited. Under the terms of RfP and the Letter of Intent, the successful bidder is obligated to accomplish the following tasks:

a) Provide Contract Performance Guarantee in favour of Central Transmission Utility of India Limited (CTUIL);

b) Execute Share Purchase Agreement and Transmission Service Agreement;

c) Acquire, for the Acquisition Price, 100% equity share of Vindhyachal Varanasi Transmission Limited from PFCCL along with all its related assets and liabilities;

d) Make an application to this Commission for the adoption of transmission charges, as required under Section 63 of the Act; and

e) Apply to this Commission for the grant of a transmission licence.

14. Power Grid Corporation of India Limited has furnished the Contract Performance Guarantee (hereinafter referred to as "CPG") in favour of the Nodal Agency, i.e., CTUIL, for Rs. 20 crore on 16.10.2025 and has acquired a hundred per cent equity holding in Vindhyachal Varanasi Transmission Limited on 16.10.2025. The Petitioner entered into a Transmission Service Agreement (TSA) with CTUIL on 16.10.2025.

15. Section 14 of the Act provides that the Appropriate Commission may, on an application made under Section 15 of the Act, grant a licence to any person to transmit electricity as a transmission licensee in any area as may be specified in the licence. The word "person" has been defined in Section 2 (49) of the Act to include any company or body corporate or association or body of individuals, whether incorporated or not, or artificial juridical person. The Petitioner has been incorporated under the Companies Act, 2013. The main objective of the Petitioner Company is as under:

"To develop Power System Network, To plan, promote and develop an integrated and efficient power transmission system network in all its aspects including planning, investigation, research, design and engineering, preparation of preliminary, feasibility and definite project reports, construction, operation and maintenance of transmission lines, sub-stations, load dispatch stations and communication facilities and appurtenant works, coordination of integrated operation of state, regional and national grid system, execution of turn-key jobs for other utilities/organizations and wheeling of power in accordance with the policies, guidelines and objectives laid down by the Central Government from time to time"

16. Section 15 (1) of the Act provides that every application under Section 14 of the Act shall be made in such manner and in such form as may be specified by the Appropriate Commission and shall be accompanied by such fees as may be prescribed by the Central Government. The Commission has specified Transmission Licence Regulations in this regard. Regulation 4 (1) of the Transmission Licence Regulations provides that eligibility for the grant of a licence for inter-State transmission of electricity is contingent upon the entity being selected either through the competitive bidding process under Section 63 of the Electricity Act, 2003 or by the Central Government or its authorised agency to implement a project under the regulated tariff mechanism. Regulation 10 (1) of the Transmission Licence Regulations provided that, in case the licensee has been selected for implementation of the project in accordance with the competitive bidding guidelines, the transmission tariff in terms of the Transmission Service Agreement shall be adopted by the Commission under Section 63 of the Act. The Project under consideration has been identified for development under competitive bidding by a competent authority, and the selection of the Project developer has been certified to have been made in accordance with the Guidelines for competitive bidding.

17. Regulation 5 of the Transmission Licence Regulations, 2024 provides for the procedure for granting of a transmission licence as under:

"(1) The application for the grant of licence shall be made to the Commission in Form-I appended to these regulations and shall be accompanied by such fee as may be prescribed by the Central Government from time to time under sub-section (1) of section 15 of the Act.

(2) The application shall be supported with an affidavit in accordance with Regulation 17 of the Central Electricity Regulatory Commission (Conduct of Business) Regulations, 2023.

(3) The applicant shall submit the original application in electronic form along with enclosures on the e-filing portal of the Commission and electronically serve a copy of such application on all the concerned DICs of the project and the Central Transmission Utility. The application shall be served through e-mail on the concerned DICs of the project who are not registered on the e-filing portal of the Commission.

(4) The applicant shall also upload the complete application along with annexures on its website, in English. The applicant shall also upload on its website, the details as per Form-I and Form-II appended to these regulations in the Indian language of the State or the Union Territory where an element of the project or concerned transmission line is situated or proposed to be situated. The application shall be kept posted on the website of the applicant till such time the application is disposed of by the Commission.

(5) The applicant shall, within 3 working days of filing the application, publish a notice of its application in Form-II appended to these regulations in at least two leading daily digital newspapers, one in English language and another in the Indian language of the State or Union Territory where an element of the project or concerned transmission line is situated or proposed to be situated, inviting comments from the general public. The notice shall also be kept posted on the website of the applicant.

(6) The Registry of the Commission shall carry out a preliminary scrutiny of the application and convey the defects, if any, as far as possible within 7 days of receipt of the application. The defects shall be rectified by the applicant within a period of 7 days from the date of such intimation from the Registry of the Commission.

(7) In the notice published in the digital newspapers and on the applicant's website under this Regulation, it shall be indicated that the suggestions and objections to the application, if any, may be filed by any person within 15 days of publication of the notice to The Secretary, Central Electricity Regulatory Commission at the address where the office of the Commission is situated and at email id: registry@cercind.gov.in. Any suggestion or objection received in response to the public notice shall be shared with the applicant and the respondents by the Registry of the Commission.

(8) The applicant shall within 3 working days from the date of publication of the notice in terms of Clause (5) of this Regulation submit to the Commission

on affidavit the details of the notice published, names of the digital newspapers in which the notice has been published, the dates and places of their publication and enclosing the relevant pages of the publication of notice.

(9) The CTUIL shall send its recommendations, if any, to the Commission on the proposal for grant of licence made in the application as far as practicable within a period of 10 (ten) days from the date of receipt of the application with a copy to the applicant: Provided that if CTUIL is unable to submit its recommendations within a period of 10 days, it shall inform the Commission the reasons for the same and submit its recommendations within a period of 30 (thirty) days from the date of receipt of the application: Provided further that along with its recommendations, CTUIL shall submit the copy of approval of the transmission project by the Central Government in terms of Electricity (Transmission System Planning, Development and Recovery of Inter-state Transmission Charges) Rules, 2021 as amended from time to time. Explanation: The recommendations of the Central Transmission Utility shall not be binding on the Commission.

(10) The applicant may file its comments, duly supported by an affidavit, on the recommendations made by CTUIL and the suggestions and objections, if any, received in response to the public notice within 7 working days of receipt of such suggestions and objections, with an advance copy to the CTUIL and the person, if any, who has filed the suggestions and objections on the proposal made in the application.

(11) The Commission after considering the suggestions and objections received from the DICs and in response to the public notice published by the applicant, and the recommendations, if any, received from CTUIL may either propose to grant the licence to the applicant or for reasons to be recorded in writing, reject the application.

(12) Before granting a licence, the Commission shall publish a notice of its proposal on the Commission's website and in two daily digital newspapers, having wide circulation, as the Commission may consider appropriate, stating the name and address of the person to whom it proposes to grant the licence, details of the project for which it proposes to grant a licence, location or route of the elements of the project, and any other details that the Commission may consider appropriate, to invite further suggestions and objections on its proposal within 15 days of the publication of the notice.

(13) The Commission may, after consideration of the further suggestions and objections, if any, received in response to the public notice in terms of Clause (12) of this Regulation, grant licence to the applicant in Form-III appended to these regulations or for reasons to be recorded in writing, reject the application.

(14) The Commission shall before granting licence or rejecting the application under the provisions of this Regulation provide an opportunity of

hearing to the applicant, CTUIL, the concerned DICs, or the person who has filed suggestions and objections, or any other interested person.

(15) The Commission shall, within 7 days of making the order to grant the licence to an applicant send a copy of the licence to the Central Government, the Central Electricity Authority, the Central Transmission Utility, the applicant and the concerned DIC(s).”

18. The Petitioner has approached the Commission with a separate application for the adoption of transmission charges in respect of the transmission system, which is presently under consideration of the Commission, and the order in that Petition will be issued separately. The Petitioner has filed the present Petition for the grant of a transmission licence in accordance with the provisions of the Transmission Licence Regulations, 2024. The Petitioner has submitted proof of service of copies of the application to the BPC, CTUIL and the beneficiaries and proof of web posting of the complete application. The Petitioner has further undertaken to pay the applicable licence fee upon the grant of a transmission licence in terms of the Central Electricity Regulatory Commission (Payment of Fees) Regulations, 2012. The Petitioner has prayed for the grant of a transmission licence to Vindhyachal Varanasi Transmission Limited with respect to the transmission system as per the details given in paragraph 1 above.

19. The Petitioner has made the Application as per Form-I and paid the fee of Rs. One lakh as prescribed by the Central Government. As per the Commission's direction, the Petitioner has served a copy of the application on the beneficiaries of the transmission project. The transmission charges quoted by the Petitioner, which have been recommended by the Bid Evaluation Committee for acceptance, is Rs. 3,231.30 million per annum. The Petitioner has also enclosed copies of the Bid Evaluation Committee's recommendations.

20. The Petitioner has published the notices on its website in Form-II in English and in the Vernacular language. The Petitioner has published the notices in the Free Press Journal (English), Hindustan Times (English), Swadesh (Hindi) and Swatantra Chetna (Hindi) on 29.10.2025. In response, no objection has been received from the general public to the notices.

21. The Petitioner has served a copy of the Application on the Central Transmission of Utility of India Limited (CTUIL) as required under Section 15 (3) of the Act and Regulation 5 (3) of the Transmission Licence Regulations. CTUIL, vide its letter dated 3.11.2025, has recommended the grant of a transmission licence to the Petitioner. The relevant portion of the said letter dated 3.11.2025 is extracted as under:

> *"This is with reference to petition having diary no. 546/2025 filed by M/s Vindhyachal Varanasi Transmission Limited before Hon'ble Commission for grant of transmission license for "Inter-regional (NR-WR) Transmission System strengthening to relieve the loading of 765 kV Vindhyachal - Varanasi D/c line". In this regard, following is submitted:*
>
> - *The issues related to high loading of 765 kV Vindhyachal - Varanasi D/C during high NR import were being observed in real-time at the time of high demand in UP. Due to this high loading of 765 kV Vindhyachal-Varanasi D/C line (under N-1 contingency), violation of WR-NR Available Transfer Capability (ATC) and NR simultaneous import is also being observed in real-time. WR-NR ATC violations in real-time would lead to situation wherein NR states would not be able to draw further power from Western region. In view of above, comprehensive transmission scheme was evolved to resolve critical loading of 765kV Vindhyachal-Varanasi D/C line in 'N-1' contingency condition as well as for transaction of power in respect of Pump Storage Projects (PSPs) located in Uttar Pradesh (UP). Detailed scope is attached at Annexure-I.*
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> - *Above transmission scheme has been discussed and agreed in 34th CMETS-NR held on 20.9.2024 and 32nd CMETS-WR held on 24.9.2024. Transmission scheme was further agreed in 77th NRPC meeting held on 27-28th Dec'24 and 51st WRPC meeting held on 11.1.2025. The transmission scheme was also agreed in 27th NCT meeting held on 6.2.2025. Subsequently, Ministry of Power,*

Government of India, vide its Gazette notification 19.3.2025 has identified M/s PFC Consulting Ltd. (PFCCL) as Bid Process Coordinator (BPC) for the purpose of selection of bidder as Transmission Service Provider (TSP) to establish above referred scheme through tariff based competitive bidding route. Extracts of the minutes of 34th CMETS-NR and 32nd CMETS-WR are enclosed at Annexure-II.

Extracts of the minutes of 77th NRPC meeting and 51st WRPC meeting are attached at Annexure-III. Extracts of the minutes of 27th NCT meeting are attached at Annexure-IV. Extracts of Gazette Notification dated 19.3.2025 are attached at Annexure-V.

- *The subject transmission scheme includes the establishment of 765 kV Prayagraj S/S in Uttar Pradesh along with 765kV Vindhyachal Pool - Prayagraj D/c line along with bypassing of Vindhyachal Pool - Sasan 765kV 2xS/C line at Vindhyachal Pool and connecting it with 765kV Vindhyachal Pool — Prayagraj D/C line, thus forming the Sasan - Prayagraj 765kV D/C line. The scheme also includes implementation of LILO of 765kV Fatehpur - Sasaram S/c Line at Prayagraj S/Sand LILO of 765kV Fatehpur - Varanasi S/c line at Prayagraj S/s.*

- *Details of inter-connecting upstream/downstream transmission system for subject transmission elements is as below:*

Sr. No.	Particulars	Details of the Transmission System	STU /ISTS	Implementing Agency	Implementation Mode (RTM/TBCB)	Commissioning Schedule/ Status
1	Upstream / Downstream Transmission System	765 kV Fatehpur - Varanasi S/c line	ISTS	Existing	Existing	Existing
2		765 kV Fatehpur - Sasaram S/c line	ISTS	Existing	Existing	Existing
3		765 kV Sasan – Vindhyachal Pool 2XS/c line	ISTS	Existing	Existing	Existing
4		3X1500 MVA, 765/400 kV Vindhyachal PS	ISTS	Existing	Existing	Existing

- *Further, it may also be mentioned that no connectivity is granted at Prayagraj S/s.*

Keeping above in view and based on details furnished by M/s Vindhyachal Varanasi Transmission Limited, CTU in line with Section 15(4) of the

Electricity Act, 2003 and Regulation 4 (1) (a) of CERC (Procedure, Terms and Conditions for grant of Transmission License and other related matters) Regulations, 2024, recommends grant of transmission license to M/s Vindhyachal Varanasi Transmission Limited, for implementation of the subject transmission scheme."

22. We have considered the submissions of the Petitioner, BPC, and CTUIL. The proviso to Clause 2.15.2 of the RfP provides that "if for any reason attributable to the BPC, the said activities are not completed by the Selected Bidder within the above period of ten (10) days as mentioned in this clause, such period of 10 days shall be extended, on a day-to-day basis till the end of the Bid validity period". As per the above provision, the selected bidder was required to complete all the activities, including the acquisition of the SPVs, by 26.9.2025. Though the LoI was issued on 16.9.2025, BPC, vide its letter dated 16.10.2025, in terms of Clause 2.15.2 of the RfP, extended the deadline to 16.10.2025 for completion of all activities by the successful bidder. The selected bidder furnished the Contract Performance Guarantee in favour of the Nodal Agency (CTUIL) for Rs. Rs. 20 crore on 16.10.2025 and acquired a hundred per cent equity-holding in the applicant company on 16.10.2025 after execution of the Share Purchase Agreement. As per clause 2.15.4 of the RfP, TSP is required to apply to the Commission for the grant of a transmission licence within five working days of the issuance of the acquisition of the SPV to the successful bidder. The successful bidder, namely Power Grid Corporation of India Limited, acquired the SPV on 16.10.2025. Accordingly, the TSP has filed the instant Petition for the grant of a transmission licence through e-filing on 24.10.2025.

23. Considering the material on record, we are *prima facie* of the view that the Petitioner satisfies the conditions for the grant of an inter-State transmission licence under Section 15 of the Act, read with the Transmission Licence Regulations for

construction, operation, and maintenance of the transmission system as described in para 1 of this order. We, therefore, direct that a public notice in two daily digital newspapers and on the Commission`s website under clause (a) of sub-section (5) of Section 15 of the Act be published to invite suggestions or objections to the grant of a transmission licence aforesaid. The objections or suggestions, if any, shall be filed by any person before the Commission by **13.2.2026.**

24. The Petitioner has undertaken to implement the Project in accordance with the provisions of the TSA, the applicable provisions of the Electricity Act, 2003, and the Transmission Licence Regulations, as framed and notified by the Commission.

25. It is observed that as per Article 5.1.1 of the TSA, the TSP, at its own cost and expense, shall be responsible for designing, constructing, erecting, testing, and commissioning each element of the Project by scheduled COD in accordance with the various regulations of the Central Electricity Authority regarding Technical Standards and Grid Standards, Prudent Utility Practices and other applicable laws. Further, Article 5.4 of the TSA provides that the TSP shall ensure that the Project is designed, built and completed in a good workman-like manner using sound engineering and construction practices and using only materials and equipment that are new and of international utility-grade quality such that the useful life of the Project will be till the expiry date. Further, the design, construction, and testing of all equipment, facilities, components, and systems of the Project shall be in accordance with Indian Standards and Codes issued by the Bureau of Indian Standards. In this regard, the Petitioner has submitted that it will implement the Project in accordance with the provisions of the TSA, including Articles 16.4, 5.1.1, and 5.4 of the TSA. It is expected that while carrying out the survey, the Petitioner has complied with the

provisions of clause 2.5.7.3, clause 2.5.7.4, and clause 2.5.7.5 of the RfP. The Petitioner will comply with the provisions of the bidding documents and the TSA for the commissioning of the Project within the SCOD.

26. The Petition shall be listed for hearing on **17.2.2026**.

Sd/-	sd/-	sd/-	sd/-
(Ravinder Singh Dhillon)	**(Harish Dudani)**	**(Ramesh Babu V)**	**(Jishnu Barua)**
Member	**Member**	**Member**	**Chairperson**